ISAAC MANGULENJE
versus
GERLDINE MANGULENJE (NEE) GONONDO

HIGH COURT OF ZIMBABWE
PHILLIPS J
HARARE, 22 January 2026, 08 June 2026

Summons Commencing Action

P Mutukwa for the Plaintiff
E Chibondo for the Defendant

PHILLIPS J:

Introduction

The plaintiff and defendant were married to each other in terms of the Marriages Act [*Chapter* 5:11], on 24 December 2011 and the marriage still subsists. The plaintiff has approached this court seeking an order for a decree of divorce, custody of the minor children, maintenance, and the sharing of their matrimonial property. At trial, the parties accepted that the marriage had irretrievably broken down and that the defendant be awarded custody of the minor children, with the plaintiff being granted reasonable rights of access.

Factual Background

The parties were married to each other in terms of the Marriages Act [*Chapter 5:11*], which is now the Marriages Act [*Chapter 5:17*], on 24 December 2011. The union was blessed with four minor children, namely EKM Mangulenje (born 22 October 2012), TMM Mangulenje (born 13 September 2014), AA Mangulenje (born 9 September 2016) and AM Mangulenje (born 10 March 2020). The plaintiff alleged that the marriage between the parties has irretrievably broken down to the extent that there are no prospects of reconciliation. Based on that, the parties

have lost love and affection for each other and have become incompatible with each other. During the course of their marriage, the parties acquired the following properties:

1.Immovable properties namely:

a) A four-bed roomed house situated at number 1826 Ussebly Road Woodlands, Waterfalls, Harare.
b) A four-bed roomed house situated at 5281, Mainway Meadows, Waterfalls, Harare.
2. Movable properties:
    a) Various household goods and properties
    b) A motor vehicle, Toyota Allion Registration number AFD 1592
    c) A motor vehicle, Toyota Allion Registration number AFH 2080
    d) A motor vehicle, Toyota Fortuner Registration number AEL 3994 non-runner
    e) DAF Truck registration number AES 1201 non-runner

It is not disputed that the custody of the minor children be granted to the defendant, with the plaintiff exercising reasonable access to the children on weekends whenever he is in Zimbabwe. The plaintiff averred that it is just and equitable that the defendant contributes to the maintenance of the minor children.

Relief Sought

a) A decree of divorce.

b) That custody of the minor child be awarded to the defendant.

c)That the matrimonial property be distributed between the parties in terms of paragraph 10

d)That each party pays its own cost.

Issues for Determination

1. Whether or not the Defendant should get 50% of the property with no compromises.
2. Whether or not the defendant should be awarded 10% of the value of the assets.
3. Whether or not plaintiff be granted access to see the children on weekends only.

4. Whether or not the plaintiff should contribute to maintain the children alone.

The Evidence

Both parties gave evidence. The plaintiff testified that he has lost love and affection for the plaintiff, the biggest issue being infidelity and being denied his conjugal rights. The plaintiff informed the court that he has been working in Somalia for about four to six weeks and that during this period, the plaintiff had tried to communicate with the defendant, but she did not want him to know about her whereabouts. He informed the court that he noticed strange behaviours and when he came back home from work, he would be denied his conjugal rights. The plaintiff averred that the parties separated from 2018 to 2019 and reconciled briefly. The plaintiff told the court that he has been responsible for the financial needs of the children and that he intends to continue to do that. The plaintiff also told the court that the defendant can continue using the household goods with the children and that the defendant be awarded the Toyota Allion Registration number AFD 1592. He further; told the court that, he must be awarded the Toyota Allion Registration number AFH 20280, for him to retain the Toyota Fortuner Registration number AEL 3994 (non-runner) and DAF Truck Registration number AES 1201 (non-runner).

With regard to the distribution of the matrimonial property, the plaintiff proposed that the defendant be awarded 15% of the matrimonial property, with the plaintiff retaining the remaining share. The plaintiff also proposed that the defendant be afforded an option to buy out the plaintiff's interest in the matrimonial property after the minor children attain the age of eighteen years.

For the 364 Rydle Ridge and 271 Carrick Creagh houses, the plaintiff made it clear that the defendant did not contribute anything to the acquisition of these properties, as such she should be excluded from sharing of any property. At the time he brought these properties the plaintiff had left their matrimonial home in December 2021, and started to build his life from scratch without the involvement of the defendant in acquiring these properties.

The defendant testified that she does not share the same sentiments that the marriage has irretrievably broken down; however, she cannot force the plaintiff to continue the marriage and denied the infidelity allegations by the plaintiff. In her testimony, the defendant did not dispute being awarded the custody of the children. She told the court that it would be prudent to give the plaintiff access to his children during the weekends, considering that he does not work in Zimbabwe. The defendant told the court that USD$80 per child as maintenance every month is not enough to cater to all the children's needs. She proposed that the plaintiff must pay $200 per child as maintenance every month. She indicated to the court that she needs groceries, she needs fuel for the oldest child, who is in Masvingo, she said that she does school run for the other three children which makes it four trips per day, Monday to Friday, she accompanies her grade six child for Saturday classes and Sunday church services.

The defendant further told the court that she is still in need of a helper and a gardener to assist in maintaining the yard as well as taking the children to fun parks and any other school activities. She told the court that she cannot contribute anything towards the maintenance of the children as she is not working and is solely relying on the plaintiff. The defendant testified that she is currently residing at Woodlands of Midlands Township of Waterfalls No. 1826 and that the plaintiff used to send money to her, and she collected and paid for the stand which is when they started building. She told the court that the agreement of sale of the above-mentioned property shows both parties' names. Regarding all the immovable properties which the parties acquired, the defendant proposed a share of 50/50 for the sake of the children. The plaintiff made it clear to the court that she has no intention to have the property in her name but a trust for the children. In her testimony, the defendant emphasized that her role as a housewife was a meaningful contribution to the marriage. She stated that she provided love, care, and emotional support during the subsistence of the union while the plaintiff was engaged in employment. She further clarified to the court that her lack of financial contribution was not due to unwillingness, but rather a consequence of her unemployment. She also mentioned to the court that the plaintiff instructed her to be a housewife and look after the children and was consequently unable to further her studies as the plaintiff only wanted her to be taught by a female teacher.

1. **Whether or not the Defendant should get 50% of the property with no compromises.**

It being common cause that this property is jointly owned by the parties, it is indeed an asset of the parties up for distribution in terms of the Matrimonial Causes Act.

The Law

The starting point for this is the law regulating the division of the assets of the spouses at divorce. The law is contained in section 7 of the Matrimonial Causes Act [*Chapter* 5:13], section 7 (1) of the Act empowers an appropriate court to make an order with regard to the "*division, apportionment and distribution of the assets of the spouses*." To carry this out, the court is guided by the provisions of section 7 (4) which provide as follows:

> *"(4) In making an order in terms of subsection (1) an appropriate court shall have regard to all circumstances of the case, including the following-*
>
> *(a) the income-earning capacity, assets and other financial resources which each spouse and child has or is likely to have in the foreseeable future;*
> *(b) the financial needs, obligations and responsibilities which each spouse and child has or is likely to have in the foreseeable future;*
> *(c) the standard of living of the family, including the manner in which any child was being educated or trained or expected to be educated or trained;*
> *(d) the age and physical and mental condition of each spouse and child;*
> *(e) the direct or indirect contribution made by each spouse to the family, including contributions made by looking after the home and caring for the family and any other domestic duties;*
> *(f) the value to either of the spouses or to any child of any benefit, including a pension or gratuity, which such spouse or child will lose as a result of the dissolution of the marriage;*
> *(g) the duration of the marriage;*
>
> *and in so doing the court shall endeavor as far as is reasonable and practicable and, having regard to their conduct, is just to do so, to place the spouses and children in the position they would have been in had a normal marriage relationship continued between the spouses."*

It is trite that the law provides a wide range of factors for consideration thus giving the court "*an extremely wide, if not unfettered, discretion to divide the assets. In doing so, the overarching*

consideration is to place the parties in the position they would have occupied if the marriage had continued, as far as possible in the circumstances." See *Usayi* v *Usayi* SC 22/24.

Additionally, section 7 (4)(e) of the Matrimonial Causes Act enjoins the Court to also consider indirect contributions made by each spouse to the family including contributions made by looking after the home and caring for the family and any other domestic duties. In the case of *Usayi v Usayi supra* the court opined on the valuation of indirect contributions as follows:

> "*How can one quantify in monetary terms the contribution of a wife and mother who for thirty-nine (39) years faithfully performed her duties as wife, mother, counsellor, domestic worker, house keeper, day and night and nurse for her husband and children? How* can one *place a monetary value on the love, thoughtfulness and attention to detail that she puts into all the routine and sometimes boring duties attendant on keeping a household running smoothly and a husband and children happy? How can one measure in monetary terms the creation of a home and therein an atmosphere from which both husband and children can function to the best of their ability*?"

The Court in *Usayi* (supra) proceeded to award 50% share of the immovable property to Mrs. Usayi, who had only contributed indirectly to the acquisition of the assets. A similar approach was followed in *Mhora v Mhora* SC 89/20, the Supreme Court also upheld the award by the High Court to a wife of a 50% share of an immovable property which was registered in her husband's name. This was pursuant to a divorce. The husband had submitted that he acquired the matrimonial property without any direct contribution from her, whilst the wife had argued that their roles were complementary. The court had this to say on indirect contributions:

> "*Indirect contributions encompass much more than the performance of domestic duties. It encompasses all aspects of a spouse's role in the life of the other spouse and their children in the day to day running of a family."*

The locus classicus on the definition of matrimonial assets is the *Gonye* v *Gonye* 2009 (1) ZLR 232 MALABA JA, (as he then was), held on behalf of the bench that:

> "*The term used are the assets of the spouses and not matrimonial property. It is important to bear in mind the concept used because the adoption of the concept matrimonial property often leads to the erroneous view that assets acquired by one spouse before marriage or when the parties are on separation should be excluded from the division, apportionment or distribution exercise. The concept "the assets of the spouses" is clearly intended to have assets owned by the spouses individually (his or hers) or jointly (theirs)*

> *at the time of the dissolution of the marriage by the court considered when an order is made with regard to the division, apportionment or distribution of such assets*."

Also, in the case of *Lafontant* v *Kennedy* 2000(2) ZLR 280(S), the court stated thus;

> "*Where two persons own immovable property in undivided shares, there exist a rebuttable assumption that they own it in equal shares. The presumption will be strengthened when the parties are married to each other at the time ownership was acquired. The court cannot move away from that position on mere grounds of equity. It cannot give away A's property to B on the mere grounds that it will be fair and reasonable or just and equitable to do so. There must be more solid foundation in law to deviate from this assumption*."

Similarly, in the case of *Kanoyangwa* v *Kanoyangwa* 2011(1) ZLR 90(H) the court held that;

> "…*where immovable property is registered in joint names of the spouse. This factor must be recognized as a starting point because a property registered in joint names the presumption is that it is held in equal shares unless proven otherwise. In order to take a spouses', share and transfer it to another, there ought to be some solid ground for doing so*."

As established in *Takafuma* v *Takafuma* 1994 (2) ZLR 103 (S) 107 C, the approach is not one of strict equality or mathematical division, but one that considers the direct and indirect contributions of each party, as well as the welfare of any minor children. MCNALLY JA made the following pronouncement;

> "*The approach which I have outlined is consistent with an earlier decision of this court. In Ncube v Ncube (1993 (1) ZLR 39). KORSAH JA dealt with a similar situation at (pp 45-48) of the judgment. He adopted the approach of starting from a position of 50-50 ownership and only moving away from that position if the justice and equity of the case required it."*

In relation to the immovable property, due regard is given to the need to come up with a fair distribution as correctly spelt out by CHITAKUNYE J(as he was then) in *Kwedza* v *Kwedza* HH34-12 where he remarked:

> "*It is only fair that whatever apportionment or distribution is done, it does not burden the defendant so much that he is left without accommodation*."

In the case of *Mhangami* v *Mhangami* HH 523-21, the court had the following to say:

> "*Furthermore, the children in this instance are all majors and can chart their own paths in life. A divorcing spouse cannot be denied her right to assets which she is entitled to and which she needs to start a new life, simply because one spouse requires the other spouse's needs to be subservient to his own legacy considerations. Divorce, of necessity, brings about fundamental changes in the parties' lives. Needs are prioritized by the courts because each party has to craft new beginnings. There is absolutely no justification here for refusing to accord each party their 50% share in the Marlborough property. Theirs was a long marriage. It will not be easy to start afresh, but that is the reality that they will have to make do with their share of the matrimonial home. As the plaintiff correctly summarized, divorce comes with the consequences of property sharing*."

In determining maintenance obligations, the court is guided by the principle that both parents are primarily and jointly responsible for maintaining a minor child according to their means and the needs of the child. The **Maintenance Act [*Chapter* 5:09]**, recognizes the duty on parents to maintain their children. It entails that when issuing a maintenance order, it must take into consideration the ability of the parent to pay and the children's needs. When granting a divorce decree, section 7 of the **Matrimonial Causes Act** empowers the court to make such orders as it considers just with regard to the maintenance of their children. In exercising this discretion, the court must consider all the circumstances of the case, including the income-earning capacity, financial resources and obligations of each party as well as the standard of living enjoyed by the family prior to the dissolution of the marriage.

Application of the Law to the facts

In terms of section 7 of the **Matrimonial Causes Act**, the court is enjoined to consider the listed factors in their entirety, rather than in isolation. The court must determine what is reasonable, just and practical in ordering the division of the property, having regard to all the circumstances of the case. It must be emphasized that no exhaustive list of relevant considerations can be prescribed, as the weight and relevance of each factor will depend upon the particular facts presented before the court.

The plaintiff prays that he be awarded 85% of the Stand No. 1826 Ussebly Road Woodlands, Waterfalls and 5281, Mainway Meadows, Waterfalls, Harare with the defendant getting 15% of the said properties. The plaintiff prays that he be awarded 100% of the stand number 271 Carrick Creagh Township, Borrowdale and Stand number R364 Rydle Ridge. The

agreement of sale of Stand No. 1826 Ussebly Road Woodlands, Waterfalls shows both parties' names, creating a *prima facie* undivided share for each party. The court is empowered to transfer part of one party's registered share only where compelling grounds exist to warrant a departure from the principle of equality. *In casu*, the defendant has been the primary caregiver for the children, maintaining the household as a wife; this arrangement enabled the plaintiff on his part to work in different countries away from home, providing his family financially, including paying for the maid and gardener as well as acquiring other properties. The court cannot ignore that the marriage was of long duration and will also consider proof of indirect contribution in the form of moral support, love and affection to justify the award of a portion of the property to a party, regardless of the fact that they did not contribute financially/ directly to its acquisition or maintenance. Most importantly, the court is not concerned merely with who paid for what, nor with whose name appears on the title deed. The central purpose of section 7 is to ensure that the division of matrimonial property is guided by fairness and equity. Its thrust is to place the parties as far as is reasonable and practical in the position they would have been had the marriage relationship continued between them.

The plaintiff's contention that the defendant must be awarded 15% on the abovementioned properties is untenable. It flies in the face of the length of the marriage, the defendant's indirect and non-financial contributions, and the time at which these properties were acquired. The plaintiff's assertions totally ignore the factors set out in section 7 (4) of the Matrimonial Causes Act and the court in *Shenje* v *Shenje* 2001 (1) ZLR 160 (H) at 163E-164 A GILLESPIE J said as follows:

> "…*the decision as to a property division order is an exercise of judicial discretion, based on all relevant factors, aimed at achieving a reasonable, practical and just division which secures each party the advantage they can fairly expect from having been married to one another, and avoids the disadvantages, to the extent they are not inevitable, of becoming divorced*."

The court finds it that there is no justification for denying the defendant her equal 50% entitlement to Stand No. 1826 Ussebly Road Woodlands, Waterfalls measuring 2055 square metres and stand number 5281, Mainway Meadows, Waterfall, Harare.

The plaintiff testified to the court that he single-handedly purchased the properties Stand number 271 Carrick Creagh Township, Borrowdale and Stand number R364 Rydle Ridge and the defendant does not dispute that she never made any financial contributions to the acquisition of the properties, in which the plaintiff is the sole owner of those properties. In *Field v Field* HH 68-21 the court defined what constitutes a solid ground that justifies an award of one party's share of the property to another, which quoted with the approval of the case of *Takafuma* v *Takafuma* 1994(2) ZLR 103 (S), where it was held that:

> "*the contributions made by the parties towards the purchase of the house and improvements upon the house and the income received by the parties from the house*"

In *Field v Field* HH 68-21 the court held that:

> *"the defendant has proved on a balance of probabilities that she was a major contributor in the acquisition of the properties before and during the marriage. She had a more profitable business enterprise than the plaintiff. She cannot be expected to have a 50-50 share of the property with the plaintiff. Her contribution was far greater than that of the defendant. The defendant wants to walk out of the marriage as a victorious beneficiary when in actual fact his contribution was only the minimal. His only winning ticket is the joint registration of the properties*".

The defendant gave evidence to the effect that both parties purchased the Amalinda property as a swap deal with her motor vehicle, although the agreement of sale reflects the plaintiff's name. At trial the defendant furnished the court with documentary evidence of an affidavit from the seller of the Amalinda property confirming the position that indeed the motor vehicle, which was used, was in the defendant's name. Although the agreement of sale only reflects the plaintiff's name as the purchaser, this property was purchased during the subsistence of the parties' marriage. The question then is what distribution will be equitable, considering the parties' contributions. The defendant only contributed indirectly.

Moving on to the movable properties, a motor vehicle, Toyota Fortuner Registration number AEL 3994 non-runner and DAF Truck registration number AES 1201 non-runner, the plaintiff had proposed that he be awarded both motor vehicles at the exclusion of the plaintiff. However,

the court is of the opinion that it is just and equitable for both vehicles to be sold and share the proceeds equally.

The defendant also testified that she is currently unemployed and that she solely relies on the plaintiff for the maintenance of the children. It is common cause that the children born during the subsistence of the marriage are all minors and the plaintiff has been maintaining the children, paying the school fees, buying uniforms and any other financially related issues. There is no doubt that the plaintiff is in a much better financial position to contribute more to the needs of the minor children as compared to the defendant. The plaintiff had offered to pay US$80 per child while the defendant would like this increased to US$200 per child every month, stating that the proposed US$80 would not be sufficient for the children. It is trite law that a child's best interests are of paramount importance in every matter concerning the child as enshrined in section 81(2) of the Constitution. This entails that a maintenance award must strive to strike a balance between the parents' capacity to cater for the needs of the children. The plaintiff's income was supported by documentary evidence in the form of payslip, from this amount, he pays for all educational, uniforms and grocery expenses for his minor children with zero financial contribution from the defendant. While the defendant's evidence highlights that the children's needs, such as fuel and groceries, are considerable, the proposed contribution of $200 per child per month appears excessive in light of the fact that the plaintiff already shoulders all other financial obligations. Thus, the court is of the opinion that an award of $100 per child every month represents a fair and equitable arrangement for the monthly maintenance.

Disposition

Accordingly, it is ordered that:

1. A decree of divorce be and is hereby granted.

2. The custody of the four minor children of the marriage, namely:

a) EKM born 22 October 2012

b) TMM born 13 September 2014

c) AA born 9 September 2016

d) AM born 10 March 2020

be and is hereby awarded to the defendant.

3. The plaintiff, shall have reasonable access to the minor children on weekends whenever he is in Zimbabwe.

4. The plaintiff shall pay maintenance of $100 per minor child every month.

4.1 The plaintiff shall continue to be responsible for the school fees and any other educational expenses for the four minor children.

5. The defendant be awarded the Toyota Allion Registration number AFD 1592 and the plaintiff be awarded the Toyota Allion Registration number AFH 20280.

6. Parties are to sell both the Toyota Fortuner Registration number AEL 3994 non-runner and DAF Truck registration number AES 1201 non-runner and equally share proceeds. This is to be done within six months of this court's order.

7. The plaintiff is entitled to a 50% share on Stand No. 1826 Ussebly Road Woodlands, Waterfalls measuring 2055 square metres and stand number 5281, Mainway Meadows, Waterfall, Harare.

8. The plaintiff is awarded Stand number 271 Carrick Creagh Township, Borrowdale and Stand number R364 Rydle Ridge as his sole and exclusive properties.

9. Amalinda property is awarded to the plaintiff and defendant 70-30 respectively. The plaintiff shall be given six months to buy out the defendant failing which the property may be sold and the proceeds shared 70 – 30 in favour of the plaintiff.

10.Each party shall pay its own costs.

PHILLIPS J _____

……plaintiff's legal practitioners
…….defendant's legal practitioners